

# U.P. State Energy Conservation Fund Rules, 2016

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State of Uttar Pradesh - Act

U.P. State Energy Conservation Fund Rules, 2016

UTTAR PRADESH

India

U.P. State Energy Conservation Fund Rules, 2016

Rule U-P-STATE-ENERGY-CONSERVATION-FUND-RULES-2016 of 2016

Published on 27 October 2016

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U.P. State Energy Conservation Fund Rules, 2016

Published vide Notification No. 1562(1)/45-5(Add. Energy Sources Department)/2016, dated October 27, 2016, published in the U.P. Gazette, Extraordinary, Part 4, Section (Ka), dated 27th October, 2016, pp. 4-6

No. 1562(1)/45-5(Add. Energy Sources Department)/2016, dated October 27, 2016, published in the U.P. Gazette, Extraordinary, Part 4, Section (Ka), dated 27th October, 2016, pp. 4-6. - In exercise of the powers under Section 57 read with Section 16 of the Energy Conservation Act, 2001 (Act No. 52 of 2001) and Section 21 of the General Clauses Act, 1897 (Act No. 10 of 1897), the Governor, in supersession of Notification No. 442/XXIV-P-3-2012, dated March 30, 2012 regarding the Uttar Pradesh State Energy Conservation Fund Rules, 2011, is pleased to make the following rules for the constitution of a fund to be called the Uttar Pradesh State Energy Conservation Fund for the purposes of the promotion of efficient use of energy and its conservation within the State of Uttar Pradesh.

1.

Short title and commencement.

- (I) These rules may be called the Uttar Pradesh State Energy Conservation Fund Rules, 2016.

(2)

They shall come into force with effect from date of their publication in the Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Energy Conservation Act, 2001 (Act No. 52 of 2001);

(b)

"Committee" means the State Level Steering Committee constituted under Rule 6;

(c)

"Fund" means the Uttar Pradesh State Energy Conservation Fund constituted under Rule 3;

(d)

"Government" means the State Government of Uttar Pradesh;

(e)

"Section" means a section of the Act;

(f)

"State Designated Agency" means the Uttar Pradesh New and Renewable Energy Development Agency, Lucknow nominated under clause (d) of Section 15.

(2)

Words and expression used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

3.

Constitution of Fund.

- There shall be constituted a Fund to be known as the Uttar Pradesh State Conservation Fund to which shall be credited the same mentioned under Section 16.

4.

Administration of the Fund.

- The Fund shall be administrated by the State Designated Agency notified under sub-section (4) of Section 16.

5.

The Fund shall be utilised for.

(a)

the purpose of promotion and efficient use of energy and its conservation in the State of Uttar Pradesh;

(b)

incurring expenditure through State Designated Agency for various awareness programmes, disseminating information to individual consumers, industries, commercial organizations, students, farmers, etc. regarding energy conservation and efficient use of energy;

(c)

meeting the expenditure incurred by the State Designated Agency for training of personnel and specialists for efficient use of energy and its conservation;

(d)

promotion of Research and Development in the field of Energy Conservation;

(e)

developing the testing and certification procedure, creation of testing facilities for certification or verification and testing of energy consumption of equipments and appliances;

(f)

developing and execute Demonstration Projects related to energy conservation and energy efficiency for encouragement and to contribute in the projects of Bureau of Energy Efficiency and Central Government;

(g)

promoting the use of energy efficient processes for the equipment's devices and systems;

(h)

meeting the matching grant to the centrally sponsored schemes and schemes and Bureau of Energy Efficiency implemented in the State of Uttar Pradesh;

(i)

meeting the expenses incurred by the State Designated Agency for implementing the provisions of the Act;

(j)

meeting the expenses incurred by the State Designated Agency on staff for dedicated Energy Conservation cell.

6.

Regulation and Control of the Fund.

- For the purposes of regulating and controlling the Fund there shall be a State Level Steering Committee consisting of the following members -

(i)

Principal Secretary/Secretary to the Government of Uttar Pradesh in Additional Energy Sources Department.

Chairperson

(ii)

Representative, Bureau of Energy Efficiency, Ministry of Power, Government of India.

Member

(iii)

Principal Secretary to the Government of Uttar Pradesh in Finance Department or his nominee.

Member

(iv)

Principal Secretary to the Government of Uttar Pradesh in Industries Development Department or his nominee.

Member

(v)

Principal Secretary to the Government of Uttar Pradesh in Agriculture Department or his nominee.

Member

(vi)

Principal Secretary to the Government of Uttar Pradesh in Urban Development Department or his nominee.

Member

(vii)

Principal Secretary to the Government of Uttar Pradesh in Housing Department or his nominee.

Member

(viii)

Principal Secretary to the Government of Uttar Pradesh in Energy Department or his nominee.

Member

(ix)

Director, Uttar Pradesh New and Renewable Secretary Energy Development Agency, Lucknow.

Member

(x)

Chief Town & Country Planner, Uttar Pradesh.

Member

7.

Meeting of the Committee.

- The meeting of the Committee shall be held at least once in every three months.

8.

Functions of the Committee.

- The functions of the Committee shall be, -

(a)

to provide guidance and support to the State Designated Agency for carrying out the energy conservation activities through Energy Conservation;

(b)

to approve the annual budgets for carrying out the energy conservation activities by the State Designated Agency from the Energy Conservation Fund;

(c)

to review and monitor the progress of activities carried out by the State Designated Agency from the Fund.

9.

Operation of the Fund.

(1)

The State Designated Agency notified under clause (d) of Section 15 shall operate the fund under the guidance of the Committee;

(2)

The State Designated Agency shall prepare the annual budget for activities to be funded from the Energy Conservation Fund before beginning of the financial year and get it approved by the Committee;

(3)

The State Designated Agency shall utilise the Fund as per the budget approved by the Committee by following the financial rules and procedures;

(4)

The State Designated Agency shall maintain the accounts of the Fund and shall furnish six monthly the statement of Income and Expenditure of the Fund to the Committee;

(5)

The amount credited to the Fund shall be deposited in saving and Term Deposit Account in such Nationalised Bank as may be advised by Committee.

10.

Investment of Fund.

(1)

The State Designated Agency shall invest the amount of the Fund in such manner so that it may earn best return of its investment in the Nationalised Bank/Financial Institutions of the Government of India.

(2)

The State Designated Agency may use the interest of the Fund to meet its annual recurring and non-recurring expenditures.

11.

Audit of Accounts.

- The accounts of the Fund shall be audited by the Comptroller and Auditor General of India annually.

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